§ 25.1 *Appraisal fees.* (a) A fee of $5 will be collected with each application for a new loan of $1,000 or less, and a fee of $10 will be collected in such case where more than $1,000 is applied for. Should the application be withdrawn or declined before an appraisal is made, the fee will be returned to the applicant. A further fee of $1 per $1,000, or fraction thereof, will be charged and deducted from the loan proceeds at the time a loan is closed on any amount loaned by the Land Bank, the Land Bank Commissioner, or both, in excess of $5,000.

(b) A fee of $5 will be collected with each application for an increased or refunding loan where new money applied for is $1,000 or less, and a fee of $10 will be collected in such case where new money of more than $1,000 is applied for: *Provided,* That only a fee of $5 will be collected with each of two or more applications filed to refinance an existing loan (Land Bank, Land Bank Commissioner, or joint Land Bank and Commissioner loans but not purchase money mortgages) covering any part of the property offered as security. Should the application be withdrawn or declined before an appraisal is made, the fee will be returned to the applicant. A further fee of $1 per $1,000, or fraction thereof, will be charged and deducted from the loan proceeds at the time the loan is closed, on any amount of new money loaned by the Land Bank, the Land Bank Commissioner, or both, whether in one or in more than one refunding loans refinancing an existing loan, in excess of $5,000, which fee, in the case of several such refunding loans, wil be prorated among the several applicants.

(c) A fee of $5 will be collected with each application for division of an existing loan (Land Bank, Land Bank Commissioner, or joint Land Bank and Land Bank Commissioner loans). The fee will be returned if the application is withdrawn or declined before an appraisal is made.

(d) An additional fee of $7.50 will be collected with each application in any type of case where an applicant resides outside the Fifth Farm Credit District. The fee will be returned if an investigation outside the district is not made.

(e) A supplemental fee equal to the fee collected with the application will be charged in any type of case for each reappraisal made because of delay on the part of an applicant or made at the applicant's request.

(Secs. 7, 13 Ninth, 39 Stat. 365, 372, as amended, secs. 26, 32, 33, 48 Stat. 48, 49, as amended; 12 U.S.C. 781 Ninth, 723 (e), 1016 (e) and Sup., 1017; 6 C.F.R. 19.322, 19.326, 19.330) (Res. Ex. Com. May 5, 1943).

Section 25.2 of Title 6, Code of Federal Regulations, is amended to read as follows:

§ 25.2 *Release fees.* An appraisal fee of $10 will be collected with each application for a partial release of security, subordination of a lien, adjustment of insurance, or release from personal liability. Only one such fee will be collected in cases where joint Land Bank and Land Bank Commissioner loans are involved. The fee will be returned if an appraisal is not made.

(Secs. 7, 13, Ninth, 39 Stat. 365, 372, as amended, secs. 32, 33, 48 Stat. 48, 49, as amended; 12 U.S.C. 723 (e), 781 Ninth, 1016 (e), 1017; 6 CFR 19.322, 19.326) (Res. Ex. Com. May 5, 1943)

Section 25.3 of Title 6, Code of Federal Regulations, is amended to read as follows:

§ 25.3 *Fees for reamortization and other loan treatments.* An applicant for reamortization or other loan treatment changing the terms of any loan or contract will not be required to pay any fee in connection with such transaction, but will be obligated to pay any incidental outside expense, such as recording and reinscription costs.

(Sec. 13 "Ninth", 39 Stat. 372, secs. 26, 32, 48 Stat. 44, 48 as amended; 12 U.S.C. 781 Ninth, 723 (e), 1016 (e); 6 CFR 19.282) (Res. Ex. Com., May 5, 1943)

Section 25.4 of Title 6, Code of Federal Regulations, is revoked. (Res. Ex. Com., May 5, 1943).

Section 25.5 of Title 6, Code of Federal Regulations, is amended to read as follows:

§ 25.5 *Prepayment fees.* Payment in full or special payments on principal of a Land Bank loan will be accepted at any time with interest at the rate currently borne by the indebtedness to the date the payment is made, except that when the full payment arises from the refinancing of the loan from a non-Government lending source there will be an additional charge of 1 percent per annum from the date of payment to the end of the initial 5-year period, computed on the original amount of the loan less the principal portions of the regular installments already paid.

(Sec. 12 Second, 39 Stat. 370, as amended; 12 U.S.C. 771 Second;) (Res. Ex. Com., May 5, 1943)

Section 25.6 of Title 6, Code of Federal Regulations, (6 F.R. 3005) is revoked. (Res. Ex. Com., May 5, 1943).

[SEAL] THE FEDERAL LAND BANK OF NEW ORLEANS.

Confirmed:

JNO. L. RYAN,
Vice-President.

[F. R. Doc. 43-7782; Filed, May 17, 1943; 9:47 a. m.]

TITLE 7—AGRICULTURE

Chapter I—War Food Administration

Subchapter B—Marketing of Perishable Agricultural Products

PART 46—REGULATIONS (OTHER THAN RULES OF PRACTICE) UNDER THE PERISHABLE AGRICULTURAL COMMODITIES ACT, 1930

MISCELLANEOUS AMENDMENTS

Pursuant to the provisions of the Perishable Agricultural Commodities Act, 1930 (46 Stat. 531, as amended; 7 U.S.C. 1940 ed. 499a-499r), as amended, and by virtue of the authority vested in me by Executive Order 9334, dated April 19, 1943 (8 F.R. 5423), Title 7, Chapter I, Subchapter B, Part 46, Code of Federal Regulations, published in the FEDERAL REGISTER on July 17, 1941 (6 F.R. 3496), is amended to read as follows:

Sec.
46.1 Meaning of words.
46.2 Definitions.

ADMINISTRATION

46.3 Chief of Branch.

LICENSES

46.4 License required.
46.5 Application for license.
46.6 License fee.
46.7 Issuance of license.
46.8 Copies of licenses.
46.9 Termination of license; notice; reinstatement.
46.10 Nonlicensed person; liability; penalty.
46.11 What constitutes valid license; form and use.
46.12 Forms of inscriptions.
46.13 Address, ownership, or membership changes.
46.14 Arrearage fees.

ACCOUNTS AND RECORDS

46.15 Accounts and records of licensee.
46.16 Record of produce received.
46.17 Lot numbers.
46.18 Sales tickets.
46.19 Documents to be preserved.
46.20 Inspection of records.
46.21 No disclosure of business of licensee.

SUSPENSION AND REVOCATION OF LICENSES

46.22 Publication of order of suspension or revocation.
46.23 Suspension or revocation order.

TRADE TERMS AND DEFINITIONS

46.24 Terms construed.

SUNDAYS AND HOLIDAYS

46.25 Sundays and holidays excluded.
46.26 Sundays and holidays included.

INSPECTION SERVICE

46.27 Inspection service.

COPIES OF RECORDS

46.28 Copies of records; how obtained.

EFFECTIVE DATE

46.29 Effective date.

AUTHORITY: §§ 46.1 to 46.29, inclusive, issued under 46 Stat. 531, as amended; 7 U.S.C. 1940 ed. 499a-499r; E.O. 9322, 8 F.R. 3807; E.O. 9334, 8 F.R. 5423.

§ 46.1 *Meaning of words.* Words in this part in the singular form shall be deemed to import the plural, and vice versa, as the case may demand.

§ 46.2 *Definitions.* The terms defined in section 1 of the act shall have the same meaning as stated therein. Unless otherwise defined, the following terms whether used in the regulations, in the act, or in the trade shall be construed as follows:

(a) "Act" means the Perishable Agricultural Commodities Act, 1930, approved June 10, 1930, and legislation supplementary thereto and amendatory thereof (46 Stat. 531; 7 U.S.C. 1940 ed. 499a-499r);

(b) "Department" means the United States Department of Agriculture;

(c) "Administration" means the War Food Administration of the Department;

(d) "Administrator" means the War Food Administrator or any officer or em-